

25SMCV01118 25SMCV01118

County: los-angeles

Division: Civil Law and Motion

Department: O

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TENTATIVE RULING

July 13, 2026

25SMCV01118 (Phillips v. Fidler,
Esq., et. al.)

INSTANT MOTION

On March 9, 2026, plaintiff Emir Phillips (Plaintiff), in pro per, filed the instant motion to compel defendant Gary Fidler's (Defendant) responses to Requests for Admission, Set Two, to deem the requests admitted, and award monetary sanctions in an unknown amount.

No opposition has been filed.

DISCUSSION

The Court notes that there are several procedural issues with the instant motion. First, the proof of service for the instant motion is not signed. Given that Defendant has not filed an opposition, it is unclear whether Defendant has been served with the instant motion. Also, Plaintiff has not provided a valid proof of service for the discovery at issue. Rather, Plaintiff appears to have copied and pasted various emails into separate documents and labeled them "proof of service," which is inadequate. Moreover, the Court notes that the exhibits state that that certain changes have been made "for consistency," but it is not clear what changes have been made. (See, e.g., Ex. B, Cover Sheet.) Lastly, with respect to monetary

sanctions, the amount of sanctions requested has been left blank.

Accordingly, Plaintiff's
motion is DENIED on procedural grounds.